CIC AND SIC

CONSTITUTIONAL RIGHT, RTI IDENTITY → PROACTIVE DISCLOSURE AND THE → FOUR DISTINCT ROUTES: REQUEST → CIC AND SIC COMPOSITION → TENURE, SERVICE CONDITIONS AND → SECTION 18 INQUIRY AND

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

◆ PRIMARY CORE FLOW ◆ SUBORDINATE EXTRA ◆ APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g3 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 CONSTITUTIONAL RIGHT, RTI IDENTITY AND PUBLIC-AUTHORITY TEST

CONSTITUTIONAL RIGHT, RTI IDENTITY AND PUBLIC-AUTHORITY TEST · ARTICLE 19(1)(A) · CONSTITUTIONAL RIGHT TO KNOW. · RTI ACT, 2005 · STATUTORY ACCESS AND ENFORCEMENT MACHINERY. · INFORMATION EXISTING MATERIAL HELD BY OR CONTROLLED BY A · PUBLIC AUTHORITY · SUBSTANTIAL FINANCE.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 19(1)(a) → constitutional right to know.
- RTI ACT, 2005 → statutory access and enforcement machinery.

POWER / PROCEDURE

- INFORMATION existing material held by or controlled by a public authority, including accessible private-body material.
- PUBLIC AUTHORITY: Constitution

CHECK / LIMIT

- substantial finance.
- RTI gives covered records, not compelled creation of answers or opinions.

FEDERAL / RIGHTS IMPACT

- ARTICLE 19(1)(a) → constitutional right to know.
- RTI ACT, 2005 → statutory access and enforcement machinery.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: RTI gives covered records, not compelled creation of answers or opinions.

01

STAGE 01 PROACTIVE DISCLOSURE AND THE REQUEST ROUTE

PROACTIVE DISCLOSURE AND THE REQUEST ROUTE · SECTION 4 RECORD MANAGEMENT + ORGANISATION, POWERS, NORMS, BUDGETS · MAXIMUM PROACTIVE DISCLOSURE · MINIMUM RESORT TO APPLICATIONS. · SECTIONS 5-7 · REQUEST WITHOUT REASONS · ORDINARY 30 DAYS · LIFE/LIBERTY 48 HOURS.

SECTION 4 record management + organisation, powers, norms, budgets and decision reasons → maximum proactive disclosure → minimum resort to applications. → SECTIONS 5-7 → PIO/APIO → request without reasons → ordinary 30 days → life/liberty 48 hours.

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 4 record management + organisation, powers, norms, budgets and decision reasons
- maximum proactive disclosure → minimum resort to applications.

POWER / PROCEDURE

- SECTIONS 5-7
- PIO/APIO → request without reasons → ordinary 30 days

CHECK / LIMIT

- life/liberty 48 hours.
- Transfer under section 6(3): as soon as practicable, not later than five days.

FEDERAL / RIGHTS IMPACT

- TRAP additional clocks apply to APIO and third-party routes.
- SECTION 4 record management + organisation, powers, norms, budgets and decision reasons

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP additional clocks apply to APIO and third-party routes.

02

STAGE 02 FOUR DISTINCT ROUTES: REQUEST, COMPLAINT AND TWO APPEALS

FOUR DISTINCT ROUTES · REQUEST, COMPLAINT AND TWO APPEALS · PIO DECISION. · FIRST APPEAL · SENIOR DEPARTMENTAL OFFICER. · SECOND APPEAL · CIC/SIC; PIO BEARS DENIAL BURDEN; DECISION BINDING UNDER SECTION · SECTION 18 COMPLAINT

REQUEST → PIO decision.

FIRST APPEAL → senior departmental officer. → SECOND APPEAL → CIC/SIC; PIO bears denial burden; decision binding under section 19(7). → SECTION 18 COMPLAINT → access-system failures and inquiry powers.

CONSTITUTIONAL BASIS / ARTICLE

- REQUEST → PIO decision.
- FIRST APPEAL → senior departmental officer.

POWER / PROCEDURE

- SECOND APPEAL → CIC/SIC: PIO bears denial burden; decision binding under section 19(7).
- SECTION 18 COMPLAINT → access-system failures and inquiry powers.

CHECK / LIMIT

- CHIEF INFORMATION COMMISSIONER V. STATE OF MANIPUR (2011) complaint is not an automatic substitute for the appellate disclosure remedy.
- REQUEST → PIO decision.

FEDERAL / RIGHTS IMPACT

- FIRST APPEAL → senior departmental officer.
- SECOND APPEAL → CIC/SIC: PIO bears denial burden; decision binding under section 19(7).

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CHIEF INFORMATION COMMISSIONER V. STATE OF MANIPUR (2011) complaint is not an automatic substitute for the appellate disclosure remedy.

03

STAGE 03 CIC AND SIC COMPOSITION AND APPOINTMENT

CIC AND SIC COMPOSITION AND APPOINTMENT · CHIEF + UP TO TEN INFORMATION COMMISSIONERS. · PRESIDENT APPOINTS AFTER PM + LOK SABHA LOP + · STATE CHIEF + UP TO TEN STATE INFORMATION COMMISSIONERS. · GOVERNOR APPOINTS AFTER CM + ASSEMBLY LOP + NOMINATED · ELIGIBILITY EMINENCE ACROSS LISTED FIELDS; CONFLICT DISQUALIFICATIONS APPLY.

CONSTITUTIONAL BASIS / ARTICLE

- CIC: Chief + up to ten Information Commissioners.
- President appoints after PM + Lok Sabha LoP + nominated Union Cabinet Minister committee.

POWER / PROCEDURE

- SIC: State Chief + up to ten State Information Commissioners.
- Governor appoints after CM + Assembly LoP + nominated State Cabinet Minister committee.

CHECK / LIMIT

- ELIGIBILITY eminence across listed fields; conflict disqualifications apply.
- CIC: Chief + up to ten Information Commissioners.

FEDERAL / RIGHTS IMPACT

- President appoints after PM + Lok Sabha LoP + nominated Union Cabinet Minister committee.
- SIC: State Chief + up to ten State Information Commissioners.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ELIGIBILITY eminence across listed fields; conflict disqualifications apply.

04

STAGE 04 TENURE, SERVICE CONDITIONS AND REMOVAL AFTER 2019

TENURE, SERVICE CONDITIONS AND REMOVAL AFTER 2019 · 2019 AMENDMENT · ACT-FIXED TERM AND ELECTION-COMMISSION PAY LINKAGE REMOVED · CENTRAL GOVERNMENT PRESCRIBES TENURE, PAY AND SERVICE CONDITIONS. · 2019 SERVICE-CONDITION RULES · THREE-YEAR TERM; AGE CEILING REMAINS 65. · PROVED MISBEHAVIOUR/INCAPACITY · SUPREME COURT INQUIRY/REPORT; DIRECT STATUTORY GROUNDS REMAIN SEPARATE.

CONSTITUTIONAL BASIS / ARTICLE

- 2019 AMENDMENT
- Act-fixed term and Election-Commission pay linkage removed

POWER / PROCEDURE

- Central Government prescribes tenure, pay and service conditions.
- 2019 SERVICE-CONDITION RULES: three-year term; age ceiling remains 65.

CHECK / LIMIT

- CIC: President
- SIC: Governor.

FEDERAL / RIGHTS IMPACT

- Proved misbehaviour/incapacity → Supreme Court inquiry/report; direct statutory grounds remain separate.
- 2019 AMENDMENT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Proved misbehaviour/incapacity → Supreme Court inquiry/report; direct statutory grounds remain separate.

05

STAGE 05 SECTION 18 INQUIRY AND EVIDENCE POWERS

SECTION 18 INQUIRY AND EVIDENCE POWERS · COMPLAINT TRIGGERS NO PIO · INABILITY TO APPLY · UNREASONABLE FEE · INCOMPLETE/FALSE/MISLEADING INFORMATION. · INQUIRY POWERS SUMMONS · PUBLIC RECORDS · COMMISSION MAY INSPECT COVERED RECORDS NOTWITHSTANDING ANOTHER OBJECTION.

COMPLAINT TRIGGERS no PIO → inability to apply → unreasonable fee → incomplete/false/misleading information. → INQUIRY POWERS summons

CONSTITUTIONAL BASIS / ARTICLE

- COMPLAINT TRIGGERS no PIO
- inability to apply

POWER / PROCEDURE

- unreasonable fee
- incomplete/false/misleading information.

CHECK / LIMIT

- INQUIRY POWERS summons
- public records

FEDERAL / RIGHTS IMPACT

- Commission may inspect covered records notwithstanding another objection.
- LIMIT evidence powers do not themselves supply the section 19 disclosure remedy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT evidence powers do not themselves supply the section 19 disclosure remedy.

06

STAGE 06 APPEAL, COMPLIANCE, COMPENSATION AND PENALTY

APPEAL, COMPLIANCE, COMPENSATION AND PENALTY · SECTION 19 APPEAL BINDING DECISION + DISCLOSURE/COMPLIANCE DIRECTIONS + · SECTION 20 PERSONAL PIO PENALTY · RS 250 PER DAY, MAXIMUM RS 25,000, AFTER HEARING · DISCIPLINARY RECOMMENDATION REMAINS DISTINCT. · BOUNDARY BINDING DOES NOT EXCLUDE ARTICLE 226/32 JUDICIAL REVIEW.

SECTION 19 APPEAL binding decision + disclosure/compliance directions + compensation by public authority.

SECTION 20 personal PIO penalty: Rs 250 per day, maximum Rs 25,000, after hearing and → Disciplinary recommendation remains distinct. → BOUNDARY binding does not exclude Article 226/32 judicial review.

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 19 APPEAL binding decision + disclosure/compliance directions + compensation by public authority.
- SECTION 20 personal PIO penalty: Rs 250 per day, maximum Rs 25,000, after hearing and statutory grounds.

POWER / PROCEDURE

- Disciplinary recommendation remains distinct.
- BOUNDARY binding does not exclude Article 226/32 judicial review.

CHECK / LIMIT

- SECTION 19 APPEAL binding decision + disclosure/compliance directions + compensation by public authority.
- SECTION 20 personal PIO penalty: Rs 250 per day, maximum Rs 25,000, after hearing and statutory grounds.

FEDERAL / RIGHTS IMPACT

- Disciplinary recommendation remains distinct.
- BOUNDARY binding does not exclude Article 226/32 judicial review.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: BOUNDARY binding does not exclude Article 226/32 judicial review.

07

STAGE 07 EXEMPTIONS, OVERRIDE, SEVERABILITY AND THIRD-PARTY PROCESS

EXEMPTIONS, OVERRIDE, SEVERABILITY AND THIRD-PARTY PROCESS · SECTION 8(1) · ENUMERATED PROTECTED INTERESTS. · SECTION 8(2) · PUBLIC-INTEREST OVERRIDE OVER OFFICIAL SECRETS ACT AND SECTION 8(1) · SECTION 8(3) · TWENTY-YEAR RULE WITH SPECIFIED EXCEPTIONS. · SECTION 9

SECTION 8(1): enumerated protected interests. → SECTION 8(2): public-interest override over Official Secrets Act and section 8(1) harms. → SECTION 8(3): twenty-year rule with specified exceptions. → SECTION 9: copyright limit. → SECTION 10: sever non-exempt material.

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 8(1): enumerated protected interests.
- SECTION 8(2): public-interest override over Official Secrets Act and section 8(1) harms.

POWER / PROCEDURE

- SECTION 8(3): twenty-year rule with specified exceptions.
- SECTION 9: copyright limit.

CHECK / LIMIT

- SECTION 10: sever non-exempt material.
- SECTION 11: consultation, not independent exemption or third-party veto.

FEDERAL / RIGHTS IMPACT

- SECTION 8(1): enumerated protected interests.
- SECTION 8(2): public-interest override over Official Secrets Act and section 8(1) harms.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: SECTION 11: consultation, not independent exemption or third-party veto.

08

STAGE 08 SECURITY ORGANISATIONS AND STATUTORY PRIORITY

SECURITY ORGANISATIONS AND STATUTORY PRIORITY · SECTION 24 · SECOND SCHEDULE INTELLIGENCE/SECURITY BODIES GENERALLY EXEMPT. · CORRUPTION AND HUMAN-RIGHTS ALLEGATIONS REMAIN ROUTES; HR DISCLOSURE NEEDS · SECTION 22 · RTI ACT OVERRIDES INCONSISTENT SECRECY LAW. · TRAP SECURITY EXEMPTION IS NOT ABSOLUTE IMMUNITY FROM CORRUPTION

CONSTITUTIONAL BASIS / ARTICLE

- SECTION 24
- Second Schedule intelligence/security bodies generally exempt.

POWER / PROCEDURE

- PROVISOS: corruption and human-rights allegations remain routes; HR disclosure needs CIC approval and uses special time.
- SECTION 22: RTI Act overrides inconsistent secrecy law.

CHECK / LIMIT

- TRAP security exemption is not absolute immunity from corruption or human-rights information.
- SECTION 24

FEDERAL / RIGHTS IMPACT

- Second Schedule intelligence/security bodies generally exempt.
- PROVISOS: corruption and human-rights allegations remain routes; HR disclosure needs CIC approval and uses special time.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP security exemption is not absolute immunity from corruption or human-rights information.

09

STAGE 09 PERSONAL INFORMATION AFTER THE DPDP SUBSTITUTION

PERSONAL INFORMATION AFTER THE DPDP SUBSTITUTION · DPDP ACT SECTION 44(3), EFFECTIVE 13 NOVEMBER 2025 · SECTION 8(1)(J) · INFORMATION WHICH RELATES TO PERSONAL INFORMATION. · HISTORICAL CLAUSE-SPECIFIC TESTS ARE NO LONGER CURRENT TEXT. · SURVIVING ANALYSIS SECTION 8(2) · OTHER STATUTES · ARTICLE 19(1)(A) AND PRIVACY PROPORTIONALITY.

DPDP ACT section 44(3), effective 13 November 2025 → section 8(1)(j): information which relates to personal information. → Historical clause-specific tests are no longer current text. → SURVIVING ANALYSIS section 8(2) → other statutes

CONSTITUTIONAL BASIS / ARTICLE

- DPDP ACT section 44(3), effective 13 November 2025
- section 8(1)(j): information which relates to personal information.

POWER / PROCEDURE

- Historical clause-specific tests are no longer current text.
- SURVIVING ANALYSIS section 8(2)

CHECK / LIMIT

- other statutes
- Article 19(1)(a) and privacy proportionality.

FEDERAL / RIGHTS IMPACT

- LIMIT do not invent a stay, Constitution Bench reference or final judgment.
- DPDP ACT section 44(3), effective 13 November 2025

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT do not invent a stay, Constitution Bench reference or final judgment.

10

STAGE 10 CASE LAW AND PUBLIC-AUTHORITY BOUNDARIES

CASE LAW AND PUBLIC-AUTHORITY BOUNDARIES · STATE OF U.P. V. RAJ NARAIN (1975) · RIGHT TO KNOW PUBLIC ACTS. · S.P. GUPTA V. UNION OF INDIA (1981) · OPEN GOVERNMENT. · CHIEF INFORMATION COMMISSIONER V. STATE OF MANIPUR (2011) · COMPLAINT ROUTE · DISCLOSURE APPEAL. · CBSE v. Aditya Bandopadhyay (2011): access covers existing records, not compelled new opinions. · RBI v. Jayantilal N. Mistry (2015): fiduciary secrecy is not a blanket regulatory exemption.

CBSE v. Aditya Bandopadhyay (2011): access covers existing records, not compelled new opinions.

RBI v. Jayantilal N. Mistry (2015): fiduciary secrecy is not a blanket regulatory exemption. → STATE OF U.P. V. RAJ NARAIN (1975): right to know public acts. → S.P. GUPTA V. UNION OF INDIA (1981): open government.

CONSTITUTIONAL BASIS / ARTICLE

- CBSE v. Aditya Bandopadhyay (2011): access covers existing records, not compelled new opinions.
- RBI v. Jayantilal N. Mistry (2015): fiduciary secrecy is not a blanket regulatory exemption.
- STATE OF U.P. V. RAJ NARAIN (1975): right to know public acts.
- S.P. GUPTA V. UNION OF INDIA (1981): open government.

POWER / PROCEDURE

- CHIEF INFORMATION COMMISSIONER V. STATE OF MANIPUR (2011): complaint route != disclosure appeal.
- SUBHASH CHANDRA AGARWAL (2019): CJI office is public authority, subject to exemptions/balancing.

CHECK / LIMIT

- ANJALI BHARDWAJ V. UNION OF INDIA (2019): timely transparent appointments.
- Political-party CIC ruling is not a final Supreme Court holding.

FEDERAL / RIGHTS IMPACT

- STATE OF U.P. V. RAJ NARAIN (1975): right to know public acts.
- S.P. GUPTA V. UNION OF INDIA (1981): open government.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Political-party CIC ruling is not a final Supreme Court holding.

11

STAGE 11 INDEPENDENCE, REFORM, PYQ AND QUALIFIED VERDICT

INDEPENDENCE, REFORM, PYQ AND QUALIFIED VERDICT · BINDING APPEAL · COMPLIANCE DIRECTIONS · PERSONAL PENALTY. · WEAK RECORDS · UNDERUSED PENALTIES · SERVICE-CONDITION DEPENDENCE. · FIXED TRANSPARENT APPOINTMENTS

STRENGTHS: binding appeal → compliance directions → personal penalty. → LIMITS: vacancies → weak records

CONSTITUTIONAL BASIS / ARTICLE

- STRENGTHS: binding appeal
- compliance directions
- personal penalty.
- LIMITS: vacancies

POWER / PROCEDURE

- weak records
- underused penalties
- service-condition dependence.
- REFORM: fixed transparent appointments

CHECK / LIMIT

- protected conditions
- digital interoperability
- proactive disclosure
- reasoned penalty practice.

FEDERAL / RIGHTS IMPACT

- PYQ 2020: amendment and autonomy, 10 marks, 150 words.
- VERDICT: legal teeth require independent, staffed and accessible commissions.

MECHANISM / VERDICT — VERDICT: legal teeth require independent, staffed and accessible commissions.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: legal teeth require independent, staffed and accessible commissions.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · INSTITUTIONAL DESIGN REFINEMENTS · (ANALYSIS) BINDING APPELLATE POWER AND EFFECTIVE ENFORCEMENT ARE DISTINCT. · VACANCIES, WEAK · RECORDS AND NON-COMPLIANCE CAN DEFEAT A LEGALLY BINDING ORDER. · (ANALYSIS) THE PUBLIC-AUTHORITY TEST SHOULD BE APPLIED THROUGH LEGAL · GOVERNMENTAL CONTROL AND SUBSTANTIAL-FINANCING EVIDENCE RATHER THAN LABELS ALONE. · (LIMIT) THE CIC POLITICAL-PARTY RULING IS INSTITUTIONALLY IMPORTANT BUT

OPTIONAL DOCTRINE / CASE

- institutional design refinements
- (ANALYSIS) Binding appellate power and effective enforcement are distinct: vacancies, weak
- records and non-compliance can defeat a legally binding order in practice.
- (ANALYSIS) The public-authority test should be applied through legal creation,

ADVANCED LIMIT

- governmental control and substantial-financing evidence rather than labels alone.
- (LIMIT) The CIC political-party ruling is institutionally important but is not a
- final Supreme Court holding declaring every political party a public authority.
- (LIMIT) Privacy analysis after the amended section 8(1)(j) must retain section 8(2).

COMPARATIVE NUANCE

- severability, purpose-specific statutes and constitutional proportionality without inventing a judicial result.
- Institutional design refinements - (ANALYSIS) Binding appellate power and effective enforcement are distinct:
- vacancies, weak records and non-compliance can defeat a legally binding order in practice.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels